02 — SaaS terms of service (subscription contract)

Français (version de référence) : ../fr/02-conditions-service-saas.md

> **TEMPLATE — DO NOT SIGN AS IS.** To be completed and validated by a lawyer (Congolese and OHADA law) and, for tax matters, by a tax adviser. The French version is the reference.

Header	
Jurisdiction	DRC; OHADA Uniform Acts (general commercial law)
Assumptions	H-01, H-02, H-03, H-09, H-10, H-11, H-14, H-17
Sources	S01 (art. 48–72), S08, S09, S10, S14 — see 00-legal-research.md § 7
Clauses to validate	V-01, V-02, V-03, V-04, V-10, V-12
Annexes	A: plan and price · B: data processing agreement (template 06) · C: service level agreement (template 07, optional) · D: acceptable use policy (template 08)
Version	[NUMBER] of [DATE]

Between

[COMPANY NAME], [LEGAL FORM], RCCM [RCCM], Nat. ID [NAT. ID], tax No. [NIF], registered office [ADDRESS], represented by [NAME, TITLE] (the “Publisher”);

and **[BUSINESS NAME]**, [FORM], RCCM [RCCM or “not registered”], tax No. [NIF], office [ADDRESS], represented by [NAME, TITLE] (the “Customer”).

When the subscription is taken online, electronic acceptance of these terms by the owner of the business account is a signature. **[TO VALIDATE: proof of electronic acceptance under the Digital Code.]**

1. Purpose

The Publisher provides the Customer with Internet access to the Nhill business management software (Nhill Business, Nhill POS depending on the plan), hosted by the Publisher or its processors, and the support described in article 7.

2. Term

2.1 **Trial**: [30] free days, once per business, without a payment method.

2.2 **Subscription**: term chosen by the Customer among those offered (for example 1, 3, 6, 12 months), renewed [by the Customer’s express decision / tacitly for the same term] **[TO CHOOSE]**. The new period starts at the end of the current one.

3. Plans, prices and payment

3.1 Plans, limits (users, tills, warehouses) and prices per term and currency are listed in Annex A and in the application when ordering. The applicable price is the one displayed and confirmed in the summary computed by the server.

3.2 Prices are stated in [USD / CDF] [excluding taxes]. **[TO VALIDATE: V-03 — payment in CDF of a USD price; rate applied; VAT on the subscription.]**

3.3 Payment methods: [bank transfer, Mobile Money (list operators), card, PayPal]. A payment is only considered received after the Publisher confirms it. An unpaid request expires after 48 hours.

3.4 **Plan change**: upgrade immediately, with the unused part of the current period deducted; downgrade at the end of the period.

3.5 **Invoicing**: the Publisher issues an invoice for each payment [under the standardised-invoice rules if it is subject to them] **[TO VALIDATE: tax adviser]**.

4. Non-payment

If payment is not made when due, the Customer has a grace period of [7] days. After that, the business switches to **read-only**: viewing and export remain possible, writing is suspended until payment. **[TO VALIDATE: V-04 — prior formal notice.]**

5. Publisher’s obligations

5.1 Provide the Service with due care, according to its documentation.

5.2 Isolate each business’s data, protect the Service with reasonable security measures (encrypted communications, access control, audit log, encrypted backups), described in template 13. No measure guarantees the complete absence of vulnerabilities.

5.3 Inform the Customer of scheduled maintenance at least [48] hours in advance.

5.4 Process the Customer’s data under the data processing agreement (Annex B).

6. Customer’s obligations

6.1 Use the Service in accordance with the terms of use (template 01) and the acceptable use policy (Annex D).

6.2 Create a personal account for each user, assign appropriate roles, remove access for people who leave the business.

6.3 Inform its staff of the activity log (template 17).

6.4 Check the tax settings (rates, mentions) and meet its tax obligations. **Nhill is not an invoicing system certified by the DGI**: a VAT-registered Customer issues standardised invoices with a certified device. **[TO VALIDATE: V-12.]**

6.5 Have Internet access and compatible computers (see the installation guide).

7. Support

Support through the “Help and support” menu of the application and [E-MAIL / BUSINESS WHATSAPP], during [DAYS AND HOURS, Kinshasa time]. Target times: template 07 if taken, otherwise best efforts.

8. Customer data

8.1 The Customer remains the owner of its data. The Publisher acts as processor (Annex B).

8.2 **Reversibility**: the Customer can export its data (CSV, PDF) at any time. At the end of the contract, the data remains available for reading and export for [90] days, then is deleted, including from backups within a further [35] days, unless the Publisher has a legal retention obligation. The Customer keeps its own accounting records for the legal period (10 years under OHADA law).

8.3 Operating statistics: the Publisher looks at aggregated figures per business (number of documents, volumes per currency, active users) to run and improve the Service; each view is written to the Customer’s log.

9. Intellectual property

The Publisher grants the Customer, for the subscription term, a non-exclusive, non-transferable right to use the Service and the applications (template 12), limited to the Customer’s internal needs and its plan’s limits.

10. Liability

10.1 Each party is liable for direct damage caused by its proven fault.

10.2 The Publisher is not liable for indirect damage (lost revenue, lost customers), for the consequences of a setting error by the Customer, or for power or Internet cuts at the Customer’s premises.

10.3 The Publisher’s total liability is limited to the amounts paid by the Customer in the 12 months before the event, except for gross negligence or wilful misconduct. **[TO VALIDATE: V-01.]**

11. Force majeure

Neither party is liable for a failure caused by force majeure under the applicable law (including serious unrest, disaster, general network outage). The affected party informs the other without delay.

12. Termination

12.1 The Customer can stop renewal at any time from the application; the subscription runs until the end of the paid period. **[TO VALIDATE: V-10 — refund / withdrawal for a sole trader.]**

12.2 Either party may terminate for a serious breach by the other not remedied within [30] days of a formal notice.

12.3 Articles 8 (reversibility), 10 and 13 survive the end of the contract.

13. Confidentiality

Each party keeps the other’s non-public information confidential during the contract and for [3] years afterwards.

14. Processors

The Publisher may use processors (hosting: [HOST, COUNTRY]) under Annex B.

15. Governing law and disputes

Law of the Democratic Republic of the Congo and OHADA Uniform Acts. [30]-day amicable settlement attempt, then [Kinshasa/Gombe commercial court / arbitration under the CCJA Arbitration Rules, seat Kinshasa, language French] **[TO VALIDATE: V-02]**.

Signatures

Made in [CITY], on [DATE], in two copies.

For the Publisher	For the Customer
[NAME, TITLE]	[NAME, TITLE]

Annex A — Plan and price

Plan	Users	POS tills	Warehouses	Term	Price	Currency
[NAME]	[N]	[N]	[N]	[MONTHS]	[AMOUNT]	[USD/CDF]

No price is preconfigured in Nhill: prices are entered by the Publisher in Nhill Console and must match this annex.